unruly. None could remotely have been said to lead to an ‘emergency’ where ‘peace and good governance of British India’ was at stake in this case. Lord Irwin knew this. This is why his statement of reasons ends rather lamely with the explanation that the special tribunal is necessary ‘to deal with wilful obstruction’. If going on a hunger strike is wilful obstruction, then that is the right of every political prisoner. It was not new. And it was certainly not ‘wilful obstruction’ even in the Lahore Conspiracy Case. It had been tried by the Irish freedom-fighters when they too had taken up the cudgels against British rule. Indian revolutionaries actually took their inspiration from them. These reasons were so poor that they stood to be immediately challenged as irrational and unsustainable. The Lahore Bar did exactly that. And yet, it did not end there. Lord Irwin took the step of transposing the existing proceedings into a special tribunal to take place away from the regular courts at Poonch House, near the tomb of Anarkali in Lahore. Such an exercise of power under Section 72 was simply impermissible as this section does not provide for a judicial tribunal to be created for six months, and certainly not when 457 witnesses have to be heard!

Lord Irwin’s actions, therefore, amounted to a gross abuse of power. The Section 72 power was designed to deal with an ‘emergency’, which had to threaten the ‘peace and good government’ of British India. It was meant for riots, revolts and civil disturbances, such as the one in 1919 in Punjab, (as depicted so memorably in Pandit Pearay Mohan’s *The Punjab ‘Rebellion’ of 1919 and How it was Suppressed*). The grant to the governor-general of an exceptional power is to deal with an extenuating situation. In such a situation he may impose a curfew and restrict civil liberties. Whatever he does, however, he can only do for a period of six months. After that, he must return everything to normalcy. This is de rigeur under the statute. Had Section 72 been intended to authorize the creation of a judicial tribunal in an emergency situation, it would have stated so and that would have been *without* a six-month time restriction. Otherwise, the six-month limit makes no sense. What if a six-month judicial tribunal is set up, but after which ‘peace and good government’ are still not restored because the ‘emergency’